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24-CLJ-00899

WELLS FARGO BANK, N.A. VS. LEMAN P. PATTON

LINE 3

WELLS FARGO BANK, N.A.
LEMAN P. PATTON

HARLAN M. REESE
JENNIFER TUNDER

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is DENIED.

To the extent that it is even necessary for the Court to judicially notice the file in the instant case, Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code Section 452 (d).

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply—motion for judgment on the pleadings is equivalent to a demurrer." Motion for Judgment on the Pleadings, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-D (quotations and citations omitted). "A motion by plaintiff (or cross-complainant) can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant (or cross-defendant) and the answer does not state facts sufficient to constitute a defense to the complaint." *Id.* (citing Code of Civil Procedure Section 438(c)(1)(A)).

A general demurrer under Section 430.10(e) of the Code of Civil Procedure for failure to state a cause of action challenges defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* (1985) 39 C3d 311, 318.

"It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted)

"For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law)." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

Plaintiff brings the instant motion pursuant to Code of Civil Procedure section 438 for the amount set forth in the complaint, \$27,153.06. Defendant has not filed a brief in opposition.

Defendant generally denies the allegations in the Complaint. RJN, Ex. A, Answer, section 3. The law allows a defendant to make general denials to a verified complaint in civil limited actions. Code Civ. Proc. § 431.30 (d).

It is of note, in passing, that Plaintiff's Motion to Deem Facts Admitted was granted, and the genuineness of any documents and truth of any facts in Plaintiff's RFA's, Set One were deemed admitted. Those admissions include that as of February 8, 2024, there was a balance owing of at least \$27,153.06 on Defendant's account and that the affirmative defenses asserted by Defendant in this matter lack merit and evidentiary support. RJN, Ex. B, Plaintiff's Motion to Deem Requests for Admission Defendant's Deemed Admissions Admitted, Ex. A.

Plaintiff argues that the deemed admissions are sufficient to grant this motion. That is mostly wrong. *Columbia Cas. Co. v. Nw. Nat. Ins. Co.* (1991) 231 Cal. App. 3d 457, 468 ("In contrast, in order for judicial notice to support a motion for judgment on the pleadings by negating an express allegation of the pleading, the notice must be of something that cannot reasonably be controverted."). The matters deemed admitted here relate to matters that can, at least in theory, be controverted and are via Defendant's answer. It is also of note, while the Court is not suggesting it would be sufficient if he had, that Defendant has not admitted breaching any agreement—only that an account with a balance belongs to him. The main case cited by Plaintiff, *Barsegian v. Kessler & Kessler* (2013) 215 Cal. App. 4th 446, 452 is not a judgment on the pleadings case and does not support granting this motion. Plaintiff also cites *Pang v. Beverly Hosp., Inc.* (2000) 79 Cal. App. 4th 986. *Pang* is a procedurally unusual case where the Plaintiff moved for summary adjudication and the trial court denied that motion but, on its own motion, converted it to a motion for judgment on the pleadings for defendant and granted it based on admissions Plaintiff made in her motion. It does not help Defendant here in this posture.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CLJ-06336

WELLS FARGO BANK, N.A. VS. MARC G. CABANGAL

LINE 4

WELLS FARGO BANK, N.A.
MARC G. CABANGAL

HARLAN M. REESE
PRO SE

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is GRANTED pursuant to Code of Civil Procedure Section 438 (c)(1)(A).

To the extent that it is even necessary for the Court to judicially notice the file in the instant case, Plaintiff's unopposed Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code Section 452 (d).

"A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply—motion for judgment on the pleadings is equivalent to a demurrer." Motion for Judgment on the Pleadings, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-D (quotations and citations omitted). "A motion by plaintiff (or cross-complainant) can be made on the ground that the complaint states facts sufficient to constitute a cause of action against the defendant (or cross-defendant) and the answer does not state facts sufficient to constitute a defense to the complaint." *Id.* (citing Code of Civil Procedure Section 438(c)(1)(A)).

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"It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted)

"For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law)." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

Here, Plaintiff's Judicial Council Form Complaint alleges breach of contract with damages in the amount of \$8,009.82. Defendant filed an Answer on November 14, 2024, but the filing was voided due to nonpayment of fees.

It is of note, in passing, that Plaintiff's Motion to Deem Facts Admitted was granted, and the genuineness of any documents and truth of any facts in Plaintiff's RFA's, Set One were deemed admitted. RJN, Exh.
